

HOUSE No. 3743

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas W. Moakley

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to moped safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>1/16/2025</i>

HOUSE No. 3743

By Representative Moakley of Falmouth, a petition (accompanied by bill, House, No. 3743) of Thomas W. Moakley relative to mopeds. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to moped safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 90 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Mobile telephone” the
3 following definition:-

4 “Moped”, a pedal bicycle with a helper motor or a non-pedal bicycle with a motor,
5 which: (i) has a cylinder capacity of no more than 50 cubic centimeters; (ii) has an automatic
6 transmission; (iii) is capable of a maximum speed of not more than 30 miles per hour; and (iv)
7 complies with all applicable federal motor vehicle safety standards; provided, that a moped that
8 does not have a restrictor plate shall be classified as a motorcycle.

9 SECTION 2. Section 8 of said chapter 90, as most recently amended by section 41 of
10 chapter 28 of the acts of 2024, is hereby further amended by adding the following paragraph:-

11 The operator of a moped shall obtain a motorcycle license.